

		<i>School Dist. v. Tsiknas</i> (2005) 135 Cal.App.4th 510, 520.) “Although initiating a meritless claim for an improper purpose can expose a party to damages for malicious prosecution, the mere initiation of a lawsuit, even for an improper purpose, does not support a claim for abuse of process.” (Ibid.) Abuse of process claims include lawsuits involving improper uses of the tools afforded litigants, such as improper use of discovery, service of wrongful attachments, or obtaining a temporary restraining order to perpetuate a false representation concerning a party. (See <i>Maleti v. Wickers</i> (2022) 82 Cal.App.5th 181, 230.) In opposition, Sunday argues the discovery sought is relevant only to the malicious prosecution cause of action and not the abuse of process cause of action. The Court agrees. Plaintiff should be able to establish a prima facie case without the need for additional discovery. Accordingly, the lifting of the discovery stay shall be limited to Plaintiff’s claim for malicious prosecution and not his claim for abuse of process. Based on the foregoing, the Court Orders as follows: 1. The discovery stay is lifted to allow for limited discovery related to Plaintiff’s claim for malicious prosecution only. No discovery will be allowed for his abuse of process claim. 2. Discovery shall be limited to 10 interrogatories and 10 document demands on each Defendant. Service of the discovery and responses shall be in accordance with the Code. 3. The hearings on defendant Sunday & Associates’ anti-SLAPP motion (ROA 40) and defendants Stone LLP, Elliot H. Stone, and Robert S. Throckmorton’s anti-SLAPP motion (ROA 57) are continued to <u>November 12, 2026 at 8:30 a.m. in Department C44</u> Clerk to give notice.
3	Collins vs. Kaiser Foundation Health Plan, Inc. 2023-01361496	Motion for Summary Judgment and/or Adjudication <i>Continued. See stipulation and order filed 6/26/26 (ROA 114).</i>